



गोवा GOA

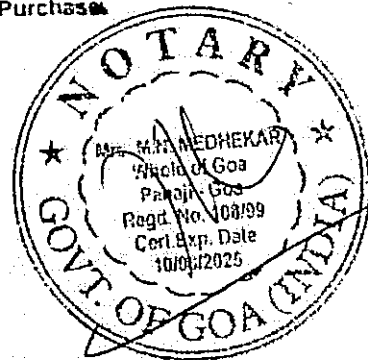
Serial No. 76 Place of Vendor, Panaji Date 9/11/13
Value of Stamp Paper _____
Name of Purchaser _____
Residence _____ Name of Father _____
Purpose _____ Transacting Parties : _____

332919



Sign of Stamp Vendor
Mangala B. S. S. S. S.
License No. AG 11/12/13/1747/99

Sign of Purchaser



ARTICLES OF ASSOCIATION

THESE ARTICLES OF ASSOCIATION made this 1st day of April in
the year Two Thousand Thirteen

[Handwritten signatures]

भारतीय गैर न्यायिक

पचास
रुपये

रु.50

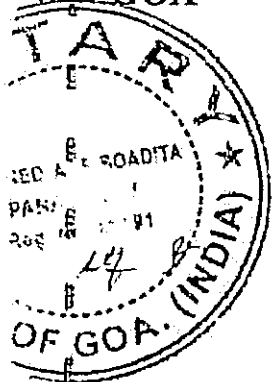


FIFTY
RUPEES

Rs.50

INDIA NON JUDICIAL

गोवा GOA



Serial No. 178 Place of Vendor, Panaji, Date 9/11/11
Value of Stamp Paper _____
Name of Purchaser _____
Residence _____ Name of Father _____
Purpose _____ Transacting Parties :

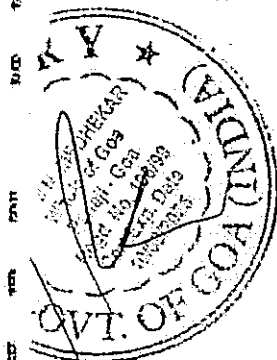
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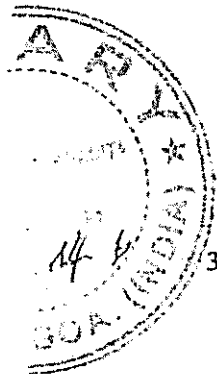
Sign of Stamp Vendor
Mangala N. Khandekar
License No. ACR 177/VER/747/99

Sign of Purchase

BETWEEN

1. **MR. PASCOAL TRINDADE**, son of late Agostinho Trindade, aged about 71 years, married, businessman, Indian Inhabitant and having his office near N. I. O., Dona Paula, Goa, hereinafter referred to as the Party of the **FIRST PART** (which expression shall unless repugnant to the context or meaning thereof, mean and include his wife Smt. Albertina Trindade, legal heirs, executors and administrators);





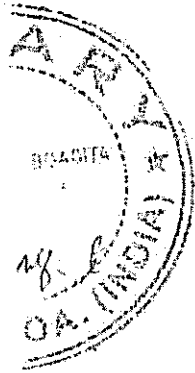
2. **MR. VIKRAM SHAH**, son of Chinubhai Shah aged about 63 Years, Indian Inhabitant residing at 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, 400006 hereinafter referred to as the Party of the **SECOND PART** (which expression shall unless repugnant to the context or meaning thereof, mean and include his legal heirs, executors and administrators);

3. **MR. MURLIDHAR SADARANGANI**, son of Shamdas Jetaram Sadarangani aged about 54 Years, Indian Inhabitant residing at S-3, Eden Hall, Dr. Annie Besant Road, Worli, Mumbai - 400018, hereinafter referred to as the Party of the **THIRD PART** (which expression shall unless repugnant to the context or meaning thereof, mean and include his legal heirs, executors and administrators);

WHEREAS By the Deed of Sale dated 25th April 2006 registered with the Sub- Registrar of Assurances at IIhas, District of North Goa under serial no. 1170 dated 02.05.2006 made by and between MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS therein referred to as the Vendor of the One part and MR. PASCOAL TRINDADE the Party of the First Part herein, therein referred to as the Purchaser of the Second Part, the Vendor therein conveyed and transferred unto the Purchaser therein (the party of the First part herein) all that piece and parcel of land bearing S. no. 93/3 situated at BAMBOLIM known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring about 26825 Sq. mtrs. within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of IIhas, District of North Goa, more particularly described in the Schedule I hereunder written (for sake of brevity, hereinafter referred to as "Schedule I Property") at or for the consideration therein paid by the Purchaser therein to the Vendor therein;



WHEREAS By the Deed of Sale dated 25th April 2006 registered with the Sub- Registrar of Assurances at IIhas, District of North Goa under serial no. 1170 dated 2-5-2006 made by and between MRS. DIONISIA DIAS E MERGULHAO alias MRS. DIONISIA DIAS therein referred to as the Vendor of the One part and MR. PASCOAL TRINDADE the Party of the First Part herein, therein referred to as the Purchaser of the Second Part, the Vendor therein conveyed and transferred unto the Purchaser therein (the



party of the First part herein) all that piece and parcel of land bearing S. no. 93/4 situated at BAMBOLIM known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring about 35075 Sq. mtrs. within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka Tiswadi, Registration sub-Districts of Ilhas, District of North Goa, more particularly described in the Schedule II hereunder written (for sake of brevity, hereinafter referred to as "Schedule II Property") at or for the consideration therein paid by the Purchaser therein to the Vendor therein

(For the sake of brevity, the properties described in the Schedule I and the Schedule II written hereunder are hereinafter collectively referred to as the "said Properties")

WHEREAS the Parties of the Second Part and Third Part approached the Party of the First Part with a proposal to develop the said Properties by pooling in their resources together;

WHEREAS the parties hereto felt that if their resources are pooled together, they can be put to greater common advantage and accordingly party of the Second & Third part advanced a sum of Rs.71,00,000/- and Rs.68,50,000/- respectively to the party of the First part from time to time for the purpose of obtaining various clearances / sanctions / NOCs / license and payment towards legal and professional charges.

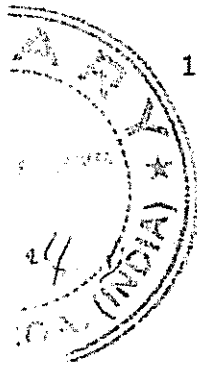
WHEREAS the parties hereto, after mutual discussions have agreed to associate together to form an Association of persons with a view to earn income from development and or sale of the Schedule - I and II properties and that they shall not form a partnership; and



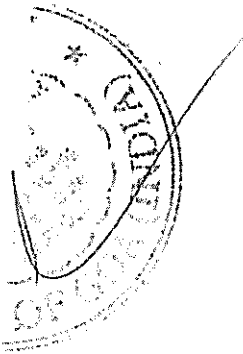
WHEREAS the parties hereto deem it expedient to reduce the terms governing their association into writing;

AND WHEREAS it is agreed that the terms and conditions unless otherwise changed by execution of a fresh deed of articles of execution or execution of addendum to this deed of Articles of Association in writing and duly signed by all the members shall be as follows:

**NOW THIS INDENTURE WITNESSETH AND THE PARTIES HEREBY
MUTUALLY AGREE AS FOLLOWS:**



1. The Parties hereto hereinafter are individually referred to as Member and collectively as the 'Members'. The Members have formed this Association with the common purpose of jointly developing and or otherwise selling the said Properties more particularly described in the Schedule I and Schedule II written hereunder.
2. This Agreement shall come into force with effect from 1st April 2013.
3. The activities of the Association shall be carried on under the name and style of M/s PVM Associates (hereinafter referred as 'Association').
4. The books of account of the Association shall be closed on 31st March 2014 for the first time and thereafter the books of accounts shall be closed on 31st March of every year.
5. The Office of the Association shall be situated at the office of the party of the First Part situated at Ocean Park Residency, Opp. N.I.O Colony, Dona Paula – Goa 403004 Dona Paula, Panaji – Goa, and branch offices at such other place/s as may be mutually agreed upon by the parties hereto.
6. The executant signatories of this Deed shall be the first members of this Association, M/s. PVM Associates. These first members may, by their unanimous decision in writing and by execution of a fresh deed of articles of execution or execution of an addendum to the Articles of Association, admit any other new members. Any individual including minor, HUF, firm, body or association of persons whether incorporated or not, trust, company, corporation, co-operative society, body corporate will be eligible to be a member of this Association. There shall be no restriction on the number of new members that may be admitted.



7. The capital of the Association shall be Rs.3,25,00,000/- which shall be contributed by all the three members of the Association in accordance with their respective profit sharing ratio specified in clause 14(a) of this Deed. As such the capital to be contributed by each of the three parties will be as under :-

1)	Mr. Pascoal Trindade	1,23,01,250/-	37.85%
2)	Mr. Vikram Shah	1,23,01,250/-	37.85%
3)	Mr. Murlidhar Sadarangani	78,97,500/-	24.30%

The capital can be contributed either by cash or by way of any asset.

8. The Party of the First Part, by way of his share of contribution to the capital of the Association hereby brings and introduces into the Association the said Properties i.e. the properties more particularly described in the Schedule I and Schedule II written hereunder. The said Properties will be valued at Rs. 3,09,50,000/- and accordingly recorded in the books of account of the Association. The capital account of the party of the first part shall be credited by an amount of Rs.1,23,01,250/-. The balance amount of Rs.1,86,48,750/- will be credited to the current account of the party of the First Part. The said Properties having been introduced in the Association have ceased to be the personal properties of the Party of the First Part and have become the properties of the Association. The Party of the First Part now holds the said Properties for and on behalf of the Association.

9. The Party of the Second Part and the Party of the Third Part have financed for acquisition / development of Schedule I and II properties over the years to party of First Part and their contribution is as under:

Mr. Vikram Shah	Rs. 71,00,000/-
Mr. Murlidhar Sadarangani	Rs. 68,50,000/-

The Party of the First Part shall refund these amounts to the Party of the Second Part and the Party of the Third Part and the Party of the Second Part and the Party of the Third Part shall thereupon bring in these amounts as their contribution to the capital of the

It is expressly agreed that balance of capital contribution of the parties of the Second and Third Part i.e. Rs.53,01,250/- and Rs.10,47,500/- shall be made by them within 15 months of the execution of this Article of Association.

14/1/2014
14/1/2014

10. It is hereby agreed that further funds required to incur expenses for the development, execution of a project or sale of the said Properties shall be contributed by all the Parties hereto in the proportion of their respective share in profit/loss specified in the clause 14(a) or 14(b) or 14(c) Or 14(d) hereinbelow, as the case may be, save and except if any funds are required to incur any expenditure / cost or to make payment for removing encumbrance, claim, demand on the said Properties by the Comunidade of Bambolim then in such event all funds required for the same shall be brought in by the Parties of the First Part and Second Part equally and the Party of the Third part shall not be required to bring in any funds for the same.

11. The Members of the Association shall be entitled to the following rights:

- i. Share in income, right to receive and to withdraw the said income;
- ii. Share in the surplus or accretion or appreciation or depletion or diminution in the value of the assets or share the assets at the time of the distribution of assets in specie on the dissolution which shall be in accordance with the provisions of this Agreement;
- iii. The Members may from time to time by unanimous decision in writing agree to increase or reduce or repay the capital; Further any such act referred to in clause (i) and (ii) above shall be in the form of a resolution in writing duly signed by all the members of this Association;

2/1/2014
2/1/2014

12. Unless the Members unanimously agree otherwise, all withdrawals by the Members shall be in proportion of their respective share in profit/loss specified in clause 15 hereinbelow.

13. Liability of Members: Subject to the provisions of the clause 15 of this Agreement, each Member shall be jointly and severally liable for all the liabilities of the Association.

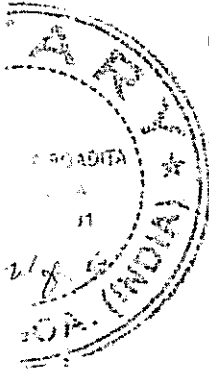
14. It is hereby agreed that the Schedule II property be notionally be divided into three parts as under:

- (a) Land admeasuring approximately 14,500 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by green colour boundary line herein referred to as the Schedule IIA Property;
- (b) Land admeasuring approximately 13,500 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by red colour boundary line herein referred to as the Schedule IIB Property;
- (c) Land admeasuring approximately 4,900 Sq. meters and forming a part of the Schedule II Property delineated on the plan of the Schedule II Property annexed hereto and surrounded by blue colour boundary line herein referred to as the Schedule IIC Property;

15. The profit/loss of the year shall be determined as per the prevailing accounting standards principles after meeting all the expenses, outgoings, depreciation, taxes etc. Separate accounts will be maintained in respect of development and sale of each of Schedule I, IIA, IIB & IIC Properties and profit arising therefrom shall be determined each year and separate Profit and Loss and Balance Sheet shall be drawn. Such profit arrived at in respect of each of Schedule I, IIA, IIB & IIC Properties shall be shared in the following ratio by the members of the Association.

- (a) Profit/Loss arising from the development and sale of Schedule I, property shall be shared by the members of the Association in the following ratio -

	Schedule I
i. Mr. Pascoal Trindade	37.85 %
ii. Mr. Vikram Shah	37.85 %
iii. Mr. Murlidhar G. Deshpande	24.30 %



- (b) Profit/Loss arising from the development and sale of Schedule IIA, Property shall be shared by the members of the Association in the following ratio -

	Schedule IIA
i. Mr. Pascoal Trindade	37.85 %
ii. Mr. Vikram Shah	37.85 %
iii. Mr. Murlidhar Sadarangani	24.30 %

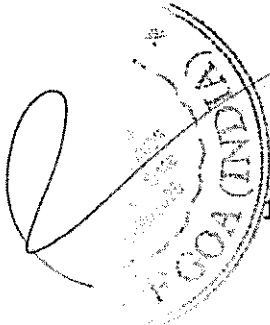
- (c) Profit/Loss arising from the development and sale of Schedule IIB Property shall be shared by the members of the Association in the following ratio -

	Schedule IIB
i. Mr. Pascoal Trindade	49.5 %
ii. Mr. Vikram Shah	49.5 %
iii. Mr. Murlidhar Sadarangani	1.0 %

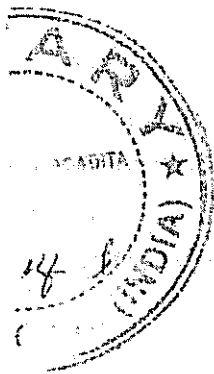
- (d) Profit/Loss arising from the development and sale of Schedule IIC Property shall be shared by the members of the Association in the following ratio -

	Schedule IIC
i. Mr. Pascoal Trindade	5 %
ii. Mr. Vikram Shah	5 %
iii. Mr. Murlidhar Sadarangani	90 %

Subsequent to such allotment and sharing of the profits/losses in respect of the profits of each of the schedule properties mentioned above, the Profit & Loss Accounts and Balance Sheets shall be consolidated to form a consolidated Profit & Loss Account and Balance Sheet of the Association.



16. It is hereby agreed and accepted by the Members that it shall be the equal responsibility of the Parties of the First Part and Second Part to ensure that the said Properties are free from encumbrance, claim of, demand of or from Comunidade the Bambolim and if the Association is required to incur any expenditure/cost or make payment for removing any such encumbrance, claim, demand of the said Comunidade the Bambolim, though forms an expenditure of

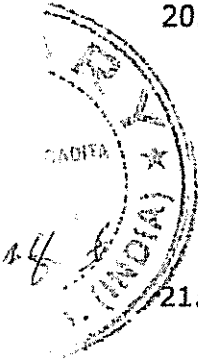


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the Association deductible from the profit of the Association, it shall be borne only by the Parties of the First Part and Second Part equally. Further it is agreed that if the Association is required to part with any land it shall be out of Schedule II B Property only and not out any other of part of the said Properties. Such amounts or cost of the land to the Association shall be debited to the capital account of the Parties of the First and Second Parts equally and the profit of the Association for the purposes of distribution of profit amongst Members shall be determined without deducting such amount or cost of such land to the Association.

17. The individual shares of the respective Members in the assets of the Association shall always be as per the profit sharing ratio specified in clause 15 (a), (b), (c) and (d) above in respect of schedule I, IIA, IIB & IIC properties respectively..
18. On dissolution of the Association or for the purpose of dissolution, the assets as existing on the date of dissolution may be distributed in specie amongst the Members as on such date of dissolution. On dissolution, all liabilities shall be discharged or if the Members deem it necessary, they may mutually adjust and settle their rights on money value basis. The Members shall respectively be entitled to receive and be paid the capital contributed by them and the amount standing to the current account of the Members shall be returned to the respective Members of the Association and the residue and/or surplus assets shall be distributed amongst the Members in accordance with clause 17 above.
19. The assets of the Association may be distributed either wholly or partially at any time prior to the dissolution of the Association by a unanimous decision as writing in the form of a resolution duly signed by all the members of the Association at a duly convened meeting thereof and such distribution may be partial as to assets and also partial as to the Members or Member of the Association. It is agreed that the distribution provided hereby could be undertaken from time to time (and also in favour of any one or more number of Members).

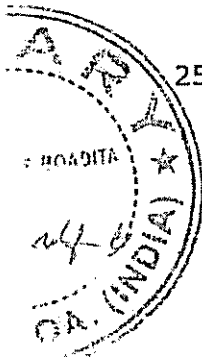




20. All decisions in regard to the affairs of the Association including entering into partnership, making of investments, withdrawing of investments, starting any new business shall be taken by the unanimous decision of the Members in writing and in the form of a resolution duly signed by all the members.
21. The resolution of the Members may be passed at a meeting of the Members duly called or by a circular resolution. No resolution shall be valid unless it is approved and passed by all the Members unanimously. Any resolution duly signed by all the Members shall be valid as if it was passed in a meeting of the Members. A Register of Resolution shall be kept by the Association and all such resolutions shall be incorporated chronologically in such Register.
22. Bank Account or Bank Accounts of the Association may be opened at any time after formation of the association invariably in the name of the association i.e. M/s. PVM Associates. The operation of the bank account / accounts shall be jointly by all the three parties to this Article of Association. An authorisation to this effect shall be furnished to the bank / banks upon opening the bank account / accounts. Any modification of this clause can be made by an unanimous resolution in writing by all the members of this Association.
23. Any sale deed to be executed on behalf of the Association in favour of prospective purchases of plots / apartments / villas or any other property owned by the association shall be invariably signed and executed by all the Parties to this Agreement. Any modification in this clause can be made by an unanimous resolution in writing by all the members of the Association.
24. Proper books of accounts shall be kept as per the accounting principles wherein shall be entered all particulars of money, goods, effects, belonging to or owing to or by the Association or paid, received, sold or purchased in the course of the activity of the Association, and of all such other transactions, matters and things relating to the activities of the Association. The said books of account together with all letters, papers or writings concerning or belonging to the Association, except such are required to be kept at



Member shall at all times have free access to and right to inspect and make copy of the same.

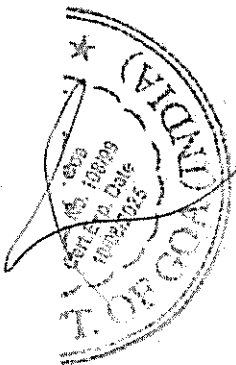


25. No Member acting alone, without specific authorisation of all the members in writing to act on behalf of the association shall, at any time by his act or omission, ever be considered to be doing acts on behalf of any other Member or Members, so as to bring into existence, by implication or otherwise, the contract of agency between the Members, or incur any liability to the Association.

26. This Agreement is not intended and does not bring into existence the relationship of the partnership between the Members and is purely an Association i.e. voluntarily coming together of the Members for the purpose of earning income. No Member by this Agreement is or shall become the agent of the association or of the other Member or Members unless all the members are acting together.

27. Notwithstanding anything else contained in this Agreement, so long as there are at least two Members of the Association, death, retirement, insolvency liquidation, winding up, dissolution or ceasing to be a member for any reason whatsoever of a Member shall not dissolve or discontinue the Association but the surviving or continuing Members shall be entitled to continue to carry on the activities by admitting new members or member or otherwise.

28. In the event of the death of a member, his legal heirs will have the choice to become members of this association and their becoming members shall be automatic unless the legal heirs specifically in writing intimate the Association of their decision not to become members within a period of 2 months of the demise of the member. The legal heirs becoming members of the association will inherit all the rights and liabilities of the deceased member and also the balance standing at the capital and current accounts of the deceased member and also the share of profit or losses hither to shared by the deceased member.



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29. Death, retirement, removal, insolvency, liquidation, winding up, dissolution or ceasing to be a member for any reason (otherwise than by reason of dissolution of this Association) the Member ceasing to be a member or in case of death of the Member his legal heirs shall be entitled to the balance standing at the capital and current account as on such date.

Such amount due shall be paid without interest to the legal heirs of the deceased Member or to the Member, as the case may be, within expiration of the period of 6 months from the date of death, retirement, removal, insolvency, liquidation, winding up, dissolution or member ceasing to be a Member for any reason (otherwise than by reason of dissolution of this Association).

However if the Association is not able to pay the balance standing at the credit of capital and current account of such members within 6 months, the member or legal heirs of the deceased member as the case may be shall be entitled to simple interest on such balance at 12% per annum till the date of payment.

This clause shall however not apply in case the legal heirs of the deceased member who choose to become members of the association join the association as members.

The remaining members may, however by their unanimous decision in writing by way of resolution, decide to pay any amount over and above the balance outstanding at the capital and current accounts of such member or legal heirs in respect of the good will of the association or the appreciation in the value of the land and assets owned by the Association. Such member or legal heirs shall however not have any right to make such claim.

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30. No Member shall, without the unanimous consent of all other Members in writing in the form of a resolution be entitled to sell, alienate, transfer, assign, gift, mortgage or charge his right, title, interest or any part thereof in the Association as Member.

31. Any Member committing breach of any of the stipulations provided



32. Any Member or Members specifically authorised in this behalf by all the members of the association shall have all powers to file and defend suits, appeals, applications etc. to declare, sign and verify all complaints, written statements, memos of appeals, cross objections, applications, affidavits etc. and to accept writ of summons, notices etc. and to appear at any place in the Union of India before any Court, Tribunal, Tax Authority, Customs Authority, Port Authority, Government Authority, Municipal or other Local Authority or any other Authority, Officer or Officers and before all Authorities, Officers and Tribunals, Commissions and before any Registrar, Joint Registrar or sub-Registrar of Assurances at any place or places in the Union of India and to present and lodge any documents or document for registration and to admit execution thereof and to compound all suits and other proceedings and to submit all difference, disputes and/or demand to arbitration and to execute all release and discharges and to do all other things relating to the matter and funds of the Association.
33. All the Members may, by unanimous decision in writing, formulate a scheme or schemes for the management of the business and the property of the Association and may frame rules and regulations and from time to time to achieve the aims and objects of the Association hereby created. All the members may appoint and authorize in writing one or more out of them or any other person or persons as manager or managers to look after, and manage the affairs, activities, funds, properties of the Association in accordance with the directions given or to be given by the Members from time to time.
34. All the matters which are not stipulated otherwise in this Agreement shall be decided jointly by the all Members of the Association by a resolution in writing duly signed by all the members.
35. In the event of any dispute between the members of this association or between the members and the legal heirs of the association or between the legal heirs themselves the matter shall be referred to arbitration according to Indian Arbitration Act then in force.



15
SCHEDULE - I

(The SCHEDULE I PROPERTY hereinabove referred to)

All that property bearing Survey No. 93/3 situated at Village Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" OR "OHOR" admeasuring 26,825 sq. mtrs. approximately within the limits of the Village Panchayat Curca, Bambolim and Talaulim, Taluka of Tiswadi, Registration sub-Districts of Ilhas, District of North Goa and bounded as follows:

On the North: By Plot surveyed under No.103.

On the South: By Plot surveyed under No.94.

On the East: By Plot surveyed under 93/1.

On the West: By the Plot of G.M.C. surveyed under Nos. 102/3 & 104

SCHEDULE-2

(The SCHEDULE II PROPERTY hereinabove referred to)

All that property bearing Survey No.93/4 situated at Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR", zoned as orchard, admeasuring 35,600 m2 approximately, within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and neither described in land registration office nor enrolled under matriz and bounded as follows:

North: By Bambolim Village road and plot surveyed under no. 107/7-11

South: By plot surveyed under No.103

East: By plot surveyed under No.93/1

West: By plot surveyed under Nos.93, 106,107/1, 2, 3, 5 and 6 Schedule 2A, 2B and 2C to be incorporated.

IN WITNESS WHEREOF THE PARTIES HERETO HAVE SET THEIR
RESPECTIVE HANDS THE DAY AND THE YEAR FIRST
HEREINABOVE MENTIONED:

SIGNED AND SEALED AND
DELIVERED BY THE
WITHIN NAMED MR. PASCOAL
TRINDADE AND PARTY OF THE
FIRST PART IN THE
PRESENCE OF

1. Manuel C. Dias

Manuel

2. *Jeh* JUJE FERNANDES

SIGNED AND SEALED AND
DELIVERED BY THE
WITHIN NAMED MR. VIKRAM
SHAH AND PARTY OF THE
SECOND PART IN THE
PRESENCE OF

1. Joyce Pereira

Joyce

2. Brenda Po

Brenda

SIGNED AND SEALED AND
DELIVERED BY THE
WITHIN NAMED MR.
MURLIDHAR SADARANGANI
AND PARTY OF THE THIRD
PART IN THE
PRESENCE OF

1. Marjula Kusunoor

MKusunoor

2. Sulochana Fatarpetkar

Sulochana

EXECUTED BEFORE ME
WHICH I ATTEST

*Identity on production of PAN CARD
AD PPP 58 91L Chief Commissioner of
Directorate K & L*



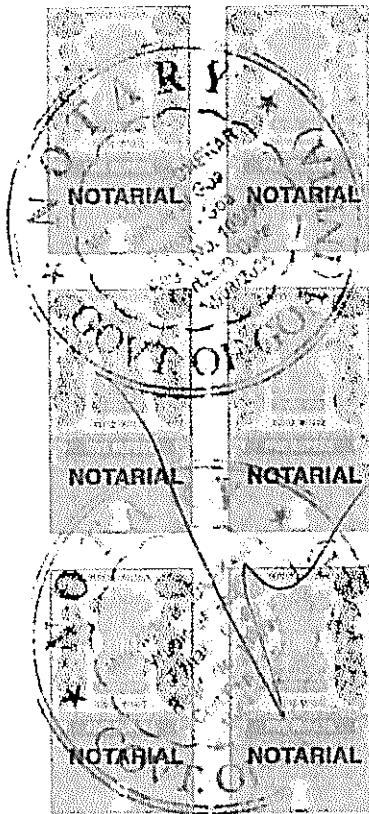
*Identity on production of PAN CARD
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*Identity on production of PAN CARD
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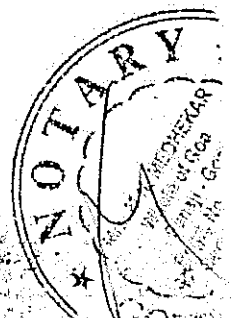
Shubhalingam





Certified True Copy of the Original
Reg. No. 4414 Dated 07/10/23

Meera Medhekar
MEERA MEDHEKAR
ADVOCATE & NOTARY
Pinto Chambers, M. B. Road,
Panaji - Goa.
Cer. Exp. Date 10/08/2025



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PRODUCED BY AN AUTODESK EDUCATIONAL PRODUCT

